

SENATE No. 3188

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the Buzzards Bay Water District to convey non-exclusive easements over a certain parcel of land.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>6/30/2026</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>7/15/2026</i>

SENATE No. 3188

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 3188) (subject to Joint Rule 12) of Dylan A. Fernandes, David T. Vieira and Steven George Xiarhos for legislation to authorize the Buzzards Bay Water District to convey non-exclusive easements over a certain parcel of land. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Buzzards Bay Water District to convey non-exclusive easements over a certain parcel of land.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the Buzzards
2 Bay Water District, acting by and through its Board of Water Commissioners, may convey to
3 Algonquin Gas Transmission, LLC, upon such terms and conditions and for the fair market value
4 or value in use, whichever is greater, as determined by an appraisal, non-exclusive permanent
5 and temporary easements, for the installation, operation, maintenance, repair and replacement of
6 natural gas pipelines and related appurtenances, an access road, and temporary workspace, under
7 and through portions of property described in subsection (b). The Buzzards Bay Water District
8 shall deposit into and hold the consideration for the permanent easement and access road in a
9 segregated account dedicated solely for the acquisition and maintenance of land for the purposes
10 of article 97 of the amendments to the constitution of the Commonwealth and shall use such

monies to acquire land or an interest in land for article 97 purposes within 3 years after the conveyance.

(b) The property on which the easements may be granted is located at Bournedale Road, Bourne, which property is identified as Assessor's Parcel 10-52-0, and described in a deed recorded with the Barnstable County Registry of Deeds in Book 2751, Page 145. The easements that may be granted on the property are more particularly shown on a plan entitled "Plan of Land Buzzards Bay Water District Bournedale Road, Bourne, Massachusetts," dated April 27, 2026, prepared by VHB, as said plan may be amended, a copy of which plan is on file with the Buzzards Bay Water District Clerk. The easements shown on the plan shall be for the benefit of Algonquin Gas Transmission, LLC.

SECTION 2. This act shall take effect upon its passage.